

		Second, because the Court’s application of equitable estoppel is based on the <i>CBC</i> arbitration agreement and not any part of the <i>Workway</i> arbitration agreement, it does not follow that the Court must also consider the terms of the <i>Workway</i> arbitration agreement in determining whether the <i>CBC</i> arbitration agreement is enforceable. Plaintiff generally contends that Civil Code section 1642 requires the court to construe together “[s]everal contracts relating to the same matters, between the same parties, and made as parts of substantially one transaction.” (Opp., p. 9.) However, section 1642 has no applicability where the relevant “agreements were separately negotiated . . . between [plaintiff] and different entities,” and the agreements were executed at different times. (<i>Parker v. McCaw</i> (2005) 125 Cal.App.4th 1494, 1507-1508.) Therefore, the Court declines to read the CBC arbitration agreement together with the Workway arbitration agreement and declines to import the confidentiality provision from the Workway agreement into the CBC arbitration agreement. Accordingly, the CBC arbitration agreement remains enforceable and not unconscionable based upon the reasons articulated in the Court’s 1/22/2026 order granting CBC’s motion to compel arbitration. (ROA #71.) In sum, the Court finds that the CBC arbitration is enforceable, is not unconscionable, and is applicable to Plaintiff’s claims against Workway under equitable estoppel principles because Plaintiff alleges that CBC and Workway are joint employers. Plaintiff is therefore ORDERED to arbitrate her individual claims against Workway, and her class claims against Workway are hereby DISMISSED. Plaintiff’s case against Workway is otherwise STAYED until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. Moving party shall give notice.
107	Padilla vs. Connect Staffing Inc. 2025-01524286	1.Motion to Compel Arbitration 2. Joinder 3. Case Management Conference CONTINUED PER STIP

108	Benitez vs. LAZ Parking California, LLC 2024-01441429	Motion for Approval of Class Settlement Plaintiffs Moises Benitez and Walter David Rodriguez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to September 3, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 11/21/2024, Plaintiffs Moises Benitez and Walter David Rodriguez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendants LAZ Parking California LLC and Alan Lazowski. (ROA #2.) Defendant answered on 2/14/2025. (ROA #23.) The operative complaint is the first amended complaint (FAC), filed on 1/13/2026 pursuant to the Court’s order granting leave, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #59.) On 2/13/2026, Plaintiffs filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement and Class Notice (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$2,500,000. The GSA includes \$100,000 allocated for PAGA penalties. The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. In the Settlement Agreement, the escalator clause includes an option allowing Defendant to shorten the Class Period. This is problematic because it renders the Class Period uncertain and may result in eliminating otherwise eligible Class Members from the settlement. 2. The Settlement Agreement must provide that the Court has final say on the validity and authenticity of requests for exclusion. 3. The Settlement Agreement must provide that while the settlement administrator may make the initial decision regarding workweek disputes, the Court may review any decision made by the administrator regarding such dispute. 4. All the releases in ¶¶ 5.1-5.3 have the following problematic language which would extend the release beyond those related to or arising out of the facts alleged in the operative complaint or PAGA notice: “and/or ascertained in the course of the Action.” The phrase “and ascertained in the course of the Action” should be deleted because it would be difficult to verify which facts were ascertained or not ascertained. 5. The Settlement Agreement should specify that the Court’s continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).
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